

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 2989

By: Dobrinski of the House

and

Woods of the Senate

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10 COMMITTEE SUBSTITUTE

11 An Act relating to electric utilities; creating the
12 Wildland Fire Mitigation Act; providing short title;
13 defining terms; authorizing development of electrical
14 wildland fire mitigation plan; prohibiting certain
15 considerations in legal proceedings; describing
16 components of an electrical wildland fire plan;
17 requiring utility to furnish plan upon request;
18 allowing utility to recover certain costs;
19 establishing liability for certain persons for
20 certain causes of wildland fires, regardless of land
21 jurisdiction; providing for certain exceptions to
22 cause determination; allowing property owner to bring
23 certain action; establishing award for damages;
24 stating act does not address certain liabilities;
 creating the Wildland Fire Mitigation Program Act;
 establishing certain programs within the Oklahoma
 Conservation Commission; establishing provisions for
 program implementation; requiring establishment of
 certain annual guidelines; requiring the promulgation
 of certain rules; creating the Wildland Fire
 Mitigation Program Revolving Fund; stating fund
 purpose; providing source of funds; providing for
 codification; and providing an effective date.

1 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

2 SECTION 1. NEW LAW A new section of law to be codified
3 in the Oklahoma Statutes as Section 158.11 of Title 17, unless there
4 is created a duplication in numbering, reads as follows:

5 Sections 2 through 4 of this act shall be known and may be cited
6 as the "Wildland Fire Mitigation Act".

7 SECTION 2. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 158.12 of Title 17, unless there
9 is created a duplication in numbering, reads as follows:

10 As used in this act:

11 1. "Electric cooperative" means a cooperative as defined
12 pursuant to Section 437.1 of Title 18 of the Oklahoma Statutes;

13 2. "Electric utility" means an electric cooperative or other
14 public utility which produces, transmits, delivers, or furnishes
15 electric current for light, heat, or power;

16 3. "Electrical wildland fire plan" means a plan that is
17 prepared by an electric utility that addresses mitigation of the
18 risk of equipment causing or exacerbating a wildland fire within the
19 electric utility's service area;

20 4. "Injuries arising from the ownership of property" means all
21 claims for property damage, trespass, nuisance, loss of use,
22 injuries to timber, loss of employment, or emotional distress
23 arising from a wildland fire;

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1 5. "Person" means an individual, corporation, company,
2 partnership, limited liability company, joint venture, association,
3 trust, or any other entity, without limitation; and

4 6. "Wildland fire" means any uncontrolled fire on forests,
5 grasslands, fields, croplands, or wildlands; provided, wildland fire
6 also includes any such fire which damages or destroys improvements
7 or structures.

8 SECTION 3. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 158.13 of Title 17, unless there
10 is created a duplication in numbering, reads as follows:

11 A. To reduce the risk of electric utility fires, protect
12 infrastructure, individuals, their property, and communities and to
13 ensure the reliability of the electric supply, an electric utility
14 operating in this state may prepare an electrical wildland fire
15 mitigation plan in accordance with the requirements of this section
16 as deemed necessary by the utility for the purpose of mitigating
17 wildland fires. Adoption or nonadoption of a wildland fire
18 mitigation plan, the content, or implementation of the plan shall
19 not be considered in any civil action or other legal proceeding
20 seeking to recover damages arising from ownership of property which
21 resulted from a wildland fire.

22 B. An electrical wildland fire plan prepared pursuant to this
23 section may include a description of:
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1 1. Geographic areas within the service area in which certain
2 operations of the electric utility that may be subject to creating a
3 heightened risk of wildland fire;

4 2. The procedures, standards, and time frames that the electric
5 utility will use to inspect its infrastructure and perform
6 vegetation management;

7 3. Proposed modifications or upgrades to facilities;

8 4. Programs that the electric utility will implement to reduce
9 the risk of its electric facilities initiating or exacerbating a
10 wildland fires;

11 5. The procedures that the electric utility intends to use to
12 restore its electrical system in the event of a wildland fire; and

13 6. Plans for vegetation management reasonably necessary for the
14 mitigation of wildland fires.

15 C. Any electric utility that prepares an electrical wildland
16 fire plan under this section shall maintain a copy of such plan and
17 make it available for public inspection upon request.

18 D. An electric utility may seek to recover in rates reasonable
19 prudently incurred investments and expenditures, including capital
20 costs, as a result of the implementation of an electrical wildland
21 fire plan.

22 SECTION 4. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 158.14 of Title 17, unless there
24 is created a duplication in numbering, reads as follows:

1 A. Except as provided in subsection B of this section, a person
2 who negligently, recklessly, or intentionally causes or spreads a
3 wildland fire shall be liable to a property owner for injury or
4 damage occurring to the owner's property that resulted from such
5 wildland fire. A person liable under this subsection shall be
6 liable regardless of whether the fire begins on federal, tribal,
7 state-owned, or private land.

8 B. In any civil action or other legal proceeding by a property
9 owner seeking to recover damages occurring to the owner's property
10 that resulted from a wildland fire, an electric utility shall not be
11 considered to have negligently caused a wildland fire if in the
12 absence of exceptional conditions, the electric utility's facilities
13 and operations complied with the requirements of the National
14 Electric Safety Code, as it may relate to the area of a wildland
15 fire's origin. An award for damages to a property owner for injury
16 or damage that resulted from a wildland fire, including loss of
17 vegetation, shall not include punitive damages or treble damages of
18 any kind, and shall be the lesser of:

19 a. the cost to restore the real property to the condition
20 it was in prior to the wildland fire, or

21 b. the difference between:

22 (1) the fair market value of the real property before
23 the wildland fire, and

1 (2) the fair market value of the real property after
2 the wildland fire.

3 C. The lack of an applicable electrical wildland fire plan
4 shall not be considered in any award for damages against an electric
5 utility.

6 D. Nothing in this act shall be construed to address or impact
7 liability for and recovery of damages for bodily injuries resulting
8 from a wildland fire.

9 SECTION 5. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 3-3-121 of Title 27A, unless
11 there is created a duplication in numbering, reads as follows:

12 Sections 6 and 7 of this act shall be known and may be cited as
13 the "Wildland Fire Mitigation Program Act".

14 SECTION 6. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 3-3-122 of Title 27A, unless
16 there is created a duplication in numbering, reads as follows:

17 A. 1. The Oklahoma Conservation Commission, in consultation
18 with the Department of Agriculture, Food, and Forestry shall develop
19 and implement a wildland fire mitigation program within its existing
20 conservation programs to reduce the risk and impact of wildland
21 fires through proactive management and incentivization of mitigation
22 practices. The Commission shall develop and implement a priority
23 incentive structure to encourage voluntary adoption of fire
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1 mitigation practices by landowners, land managers, and other
2 stakeholders.

3 2. The Commission shall establish and may subsequently revise
4 annual guidelines for the program, including but not limited to,
5 criteria for eligibility, application processes, incentive
6 structures, cost-share opportunities, and program administration.
7 The Commission shall promulgate rules to effectuate the provisions
8 of this act.

9 B. 1. The Conservation Commission shall develop a wildland
10 fire mitigation pilot program to test and refine fire mitigation
11 strategies developed under subsection A of this section in areas
12 historically impacted by large-scale wildland fires.

13 2. The pilot program shall focus on a geographical area
14 encompassing regions affected by wildland fires of at least forty
15 thousand (40,000) acres within the past ten (10) years.

16 C. The Commission shall use data and input from relevant
17 agencies, local governments, and stakeholders to determine eligible
18 areas.

19 D. The Commission shall conduct periodic evaluations of the
20 programs developed under this section to determine the effectiveness
21 of the programs and recommend adjustments as necessary.

22 SECTION 7. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 3-3-123 of Title 27A, unless
24 there is created a duplication in numbering, reads as follows:

1 There is hereby created in the State Treasury a revolving fund
2 for the Oklahoma Conservation Commission to be designated the
3 "Wildland Fire Mitigation Program Revolving Fund". The fund shall
4 be a continuing fund, not subject to fiscal year limitations, and
5 shall consist of all monies received by the Commission from
6 appropriations, grants, private donations, or other funding sources
7 provided for the purpose of implementing the Wildland Fire
8 Mitigation Program Act. All monies accruing to the credit of the
9 fund are hereby appropriated and may be budgeted and expended by the
10 Commission for the purpose provided for in this act. Expenditures
11 from the fund shall be made upon warrants issued by the State
12 Treasurer against claims filed as prescribed by law with the
13 Director of the Office of Management and Enterprise Services for
14 approval and payment.

15 SECTION 8. This act shall become effective November 1, 2026.

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17 COMMITTEE REPORT BY: COMMITTEE ON ENERGY AND NATURAL RESOURCES
18 OVERSIGHT, dated 03/04/2026 - DO PASS, As Amended and Coauthored.
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